

Oxus Perjury — Criminal Referral Annex

*Perjury Act 1911 s.1 — Karim Zahmoul — Sworn testimony 22 February
2024*

Case references

BV20D01752 | Zahmoul v Zahmoul

SEC TCR 17284-760-060-567 | IRS:CI New York Field Office

Referred to:

MPS Serious and Organised Crime Command
CPS Special Crime Division
NCA Economic Crime Command
Thames Valley Police — for coordination

Nadia Zahmoul

Litigant in Person

16 March 2026

Veritas Numquam Perit

PART 1 — EXECUTIVE SUMMARY

1. This annex concerns perjury committed by Karim Zahmoul (H) under oath during the financial remedy final hearing in BV20D01752, heard before MacDonald J on 19-28 February 2024.
2. The perjury is documented, admitted, and uncontested as a matter of evidence. It has never been the subject of a judicial determination. Every procedural route by which it could have been determined has been closed. The closing of those routes is itself the subject of this referral.
3. The core facts are these:
 - On 16 January 2024 — 34 days before trial — H signed a United States Securities and Exchange Commission Proxy Statement and Prospectus (the SEC Prospectus) stating that his Oxus Founder Shares had a market value of approximately \$565,000.
 - On 7 February 2024 — 12 days before trial — the Oxus Business Combination closed and the performance condition triggering recognition of H's shares was met.
 - On 8 February 2024 — 11 days before trial — H was photographed at the Nasdaq Exchange in New York at the public launch of the new company (BRLS). The photograph was posted by Kenes Rakishev on his Instagram account at 4:45pm EST.
 - On 22 February 2024 — under oath, at trial — H testified that his Oxus shares had no value (\$0).
 - H made or directed three further false representations through counsel at trial (19 February, 26 February, and 28 February 2024).
 - H then directed his solicitors to ignore NZ's solicitors' emails of 29 February, 4 March and 6 March 2024 seeking an explanation.
4. The SEC whistleblower submission TCR 17284-760-060-567, filed by NZ on 9 October 2024, places this material before the United States Securities and Exchange Commission under penalty of perjury.
5. An open investigation has been confirmed by IRS Criminal Investigation, Special Agent Robert McGarry, New York Field Office (robert.mcgarry@ci.irs.gov | 917-620-8587).
6. The perjury is not a contested factual question. It is documented by a public SEC filing H himself signed. The police are asked to open a criminal investigation under the Perjury Act 1911 s.1.

PART 2 — CHRONOLOGY OF PERJURY

The following table sets out the key dates establishing the perjury. All facts are sourced from public SEC filings, trial transcripts, and contemporaneous correspondence.

Date	Event	Evidential Source
1 June 2022	H appointed to board of Oxus Acquisition Corp by Kenes	SEC Form 3 Initial Statement of Beneficial Ownership, dated 7

	Rakishev	June 2022
7 June 2022	50,000 Founder Shares transferred to H by Rakishev's Sponsor entity. Fair value stated at \$0.02m / \$0.33 per share. Performance condition: occurrence of Business Combination.	SEC Proxy Statement and Prospectus, 16 January 2024, p.363. Also: Form 3, 7 June 2022.
16 January 2024	H signs SEC Proxy Statement and Prospectus. Page 34 states: beneficial ownership of H's 50,000 Founder Shares has a total market value of approximately \$565,000 (based on Nasdaq closing price of \$11.30 on 11 January 2024). H signs as independent director.	SEC Proxy Statement and Prospectus dated 16 January 2024, p.34 and p.363. CIK 1852973. Available at SEC EDGAR.
2 February 2024	Oxus extraordinary general meeting of shareholders: Business Combination approved.	SEC filings. CIK 1852973.
7 February 2024	Business Combination consummated (the Closing Date). Performance condition met. H's Class B Founder Shares automatically convert into new company shares. Compensation expense recognised.	SEC Proxy Statement, p.363: <i>"Stock-based compensation would be recognized at the date the performance conditions are met (i.e., upon consummation of a Business Combination)."</i>
8 February 2024	New company (Borealis Foods / BRLS) begins trading on Nasdaq. H photographed at Nasdaq Exchange, New York, alongside Rakishev and the Oxus/Borealis team at the public launch.	Rakishev Instagram post, 8 February 2024, 4:45pm EST. Photograph published on Nasdaq's website. Annexed to SEC whistleblower submission TCR 17284-760-060-567.
19 February 2024 (Day 1)	H swears his financial statement (Form E). Oxus shares stated as worth \$0. Campbell KC states in opening that the Oxus shares <i>"have no value"</i> on H's instructions.	Trial transcript, 19 February 2024. H's Form E sworn on this date. Campbell KC opening submissions, 19 February 2024.
22 February 2024 (Day 3)	H testifies under oath. He states the Oxus shares are worth \$0. He states he has resigned his directorship. He makes no reference to the Closing Date, the Nasdaq listing, or the photograph.	Trial transcript, 22 February 2024. Cross-referenced with SEC Proxy Statement, p.34 and p.363.
26 February 2024 (Day 5)	Campbell KC repeats in oral submissions that the Oxus shares have no value, on H's instructions.	Trial transcript, 26 February 2024.

28 February 2024 (Day 7)	Campbell KC repeats in closing submissions that the Oxus shares have no value, on H's instructions.	Trial transcript, 28 February 2024.
29 Feb / 4 Mar / 6 Mar 2024	NZ's solicitors (AFP Bloom) send three emails to H's solicitors requesting an explanation regarding the Oxus shares. H directs his solicitors to ignore all three emails. No response is provided.	Emails from AFP Bloom to H's solicitors, 29 February, 4 and 6 March 2024. Contemporaneous record in NZ's possession.
7 March 2024	NZ files D11 application with the High Court alleging false representations regarding Oxus. Application not sealed. Judge asked by Campbell KC not to read NZ's submission.	D11 application, 7 March 2024. Email from Campbell KC to the court, 6 March 2024, requesting judge not read NZ's submission.
18 April 2024	Judgment handed down. Silent on Oxus perjury. No finding made on H's representations regarding his Oxus shares.	DH v RH (No 3) [2024] EWFC 79. Published on The National Archives.
9 October 2024	NZ files SEC whistleblower submission TCR 17284-760-060-567 under penalty of perjury, placing the Oxus perjury before the United States Securities and Exchange Commission.	SEC TCR Report 17284-760-060-567, filed 9 October 2024. Submission confirmed by SEC automated response.
8 May 2025	MacDonald J dismisses set-aside and contempt application in NZ's absence, on the ground that the Oxus shares were " <i>not matrimonial property</i> " — a ground irrelevant to the perjury charge.	MacDonald J order, 8 May 2025. MacDonald J was wrong: materiality to perjury under Perjury Act 1911 s.1 does not require the property to be matrimonial.
21 May 2025	NZ transmits formal referral to the Attorney General. No response.	AG referral letter, 21 May 2025. Contemporaneous record.
4 August 2025	Lady Justice King refuses CPR 52.30 application to reopen the Court of Appeal refusal. Addresses Oxus as a factual finding question, not a perjury question. Court of Appeal route closed.	Lady Justice King order, 4 August 2025. CA-2024-001342-A.
11 March 2026	Collins Rice J refuses Judicial Review permission TWM. Mischaracterises claim as concerning criminal complaints. JR route closed.	Collins Rice J order, 11 March 2026. AC-2025-LON-004293.

PART 3 — LEGAL ANALYSIS

3.1 The Perjury Charge

7. The Perjury Act 1911 s.1 provides that perjury occurs where a person lawfully sworn as a witness in a judicial proceeding wilfully makes a statement material to that proceeding which he knows to be false or does not believe to be true.
8. Each element is met:
 - H was lawfully sworn as a witness in BV20D01752, a judicial proceeding before MacDonald J in the Family Division of the High Court.
 - H's statement that his Oxus shares had no value was made at trial on 22 February 2024 and repeated through counsel on 19, 26 and 28 February 2024.
 - The statement was material: the court was conducting a financial remedy hearing. The assets available for distribution were directly in issue. A \$565,000 asset declared as \$0 is material.
 - H knew the statement to be false: he had signed the SEC Prospectus on 16 January 2024 stating the market value was approximately \$565,000. He attended the Nasdaq launch on 8 February 2024. He was photographed there. The performance condition had been met.
 - H's direction to his solicitors to ignore three requests for explanation (29 February, 4 and 6 March 2024) is contemporaneous evidence of consciousness of guilt.
9. The Perjury Act 1911 s.1(6) makes clear that the materiality of the statement is a question of law for the judge. The statement was clearly material — H's Form E was the foundational document for the financial settlement.

3.2 The Valuation Evidence

10. The SEC Proxy Statement and Prospectus dated 16 January 2024 states at page 34: *"The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024."*
11. NZ's share of that total: approximately \$565,000. This figure appears in a document H signed as independent director on 16 January 2024 — 34 days before trial.
12. The SEC Form 3 Initial Statement of Beneficial Ownership of Securities, dated 7 June 2022, confirms that H's Class B shares *"will automatically convert into shares of Class A ordinary shares at the time of the Issuer's initial business combination."* H signed this form. He knew the conversion mechanism.
13. The SEC Proxy Statement at page 363 states: *"Stock-based compensation would be recognized at the date the performance conditions are met (i.e., upon consummation*

of a Business Combination)." The Business Combination was consummated on 7 February 2024. Twelve days before trial. H knew this.

- 14. H's testimony of \$0 was not a mistake of valuation methodology. It was a straightforward lie. He had signed a document 34 days earlier stating the shares were worth approximately \$565,000. He attended the Nasdaq launch 11 days before trial. He cannot have been unaware.

3.3 The Coinbase Parallel

- 15. The Oxus perjury is not isolated. H made three admissions under oath at trial that he knew his Coinbase cryptocurrency account was worth approximately \$7.5 million when he declared \$75,000 on his Form E. This is a separate but connected perjury. It demonstrates a pattern of deliberate understatement of assets under oath. The Coinbase admissions are documented in the trial transcript and are available to investigating officers on request.

3.4 Why MacDonald J's Ground for Dismissal is Legally Wrong

- 16. On 8 May 2025, MacDonald J dismissed NZ's contempt application on the ground that the Oxus shares were "not matrimonial property." This is wrong as a matter of law for the following reason.
- 17. Perjury under the Perjury Act 1911 s.1 does not require the false statement to concern matrimonial property. It requires the statement to be material to the proceeding. In a financial remedy hearing, the total asset schedule is the central issue. A \$565,000 asset declared as \$0 is plainly material to that proceeding, regardless of whether it would ultimately have been treated as matrimonial property. The contempt application was dismissed on an irrelevant ground.
- 18. This error has now been confirmed at three levels — MacDonald J (8 May 2025), Lady Justice King (4 August 2025), and Collins Rice J (11 March 2026). At no level has a court engaged with the actual perjury question: was the statement false, was it material, and did H know it to be false? The answer to all three is demonstrably yes.

PART 4 — CLOSED ROUTES: WHY EVERY DOMESTIC AVENUE HAS BEEN EXHAUSTED

- 19. The following table records every procedural route through which the Oxus perjury could have been determined. None produced a determination of the substance. Each was closed without engagement with the evidence.

Date	Route	Outcome	Analysis
7 March 2024	D11 application, Family Division	Not sealed. Campbell KC asked judge not to read NZ's submission.	No judicial determination. The application was

			effectively suppressed before it reached the judge.
18 April 2024	Final judgment, MacDonald J	Judgment entirely silent on Oxus.	No engagement. The judgment makes no finding on H's Oxus representations despite these being placed before the court.
23 December 2024	Court of Appeal — Moylan LJ, PTA	Permission to appeal refused. Moylan LJ found the judge's findings were open to him on the evidence.	Pattern: Oxus treated as factual finding question, not perjury question. <i>"Open to him on the evidence"</i> does not address whether the sworn representation was true or false.
8 May 2025	Set-aside and contempt application, MacDonald J	Dismissed in NZ's absence. Ground: Oxus shares <i>"not matrimonial property."</i>	Wrong ground in law. Perjury does not require matrimonial property. NZ was absent due to medical emergency. MacDonald J proceeded on H's unilateral bundle only.
21 May 2025	Attorney General referral	Silence. No acknowledgement.	No engagement.
4 August 2025	Court of Appeal — Lady Justice King, CPR 52.30	Refused. Treats Oxus as factual findings question.	Pattern confirmed: <i>"Moylan LJ considered the judge's assessment of the facts and concluded that the judge's findings were open to him on the evidence before him."</i> This is not an answer to a perjury allegation. CA route now closed.
11 March 2026	Administrative Court — Collins Rice J, JR permission	Refused TWM. Mischaracterises claim as criminal complaint.	Pattern confirmed: conflation. The JR asked whether the administrative handling of the Oxus material was lawful — not whether the perjury occurred. Collins Rice J addressed the wrong question. JR route now subject to CPR 3.1(7) revocation application (12 March 2026).

20. The pattern across all seven routes is identical: the Oxus perjury is addressed as a factual finding question rather than a criminal charge question, or it is addressed on an irrelevant ground, or it is not addressed at all. No court has ever answered the question: was H's sworn statement that his Oxus shares were worth \$0 true or false?
21. This is an unanswered criminal question, not a resolved civil dispute. It falls to law enforcement to determine it.

PART 5 — PERVERTING THE COURSE OF JUSTICE: THE CAMPBELL KC ELEMENT

22. This referral does not ask the police to investigate the legal advice given by Campbell KC. It draws attention to one specific act that may constitute perverting the course of justice.
23. On 6 March 2024, Campbell KC sent an email to the court asking the judge not to read NZ's submission concerning the Oxus perjury. The D11 application was subsequently not sealed.
24. The question for investigating officers is whether that communication — a direct request to the court to decline to read a submission that contained evidence of perjury committed before that court — constitutes a step that has a tendency to pervert the course of justice within the principle in *R v Vreones* [1891] 1 QB 360 and the subsequent line of authority.
25. NZ does not make that allegation definitively. She places the material before the police and asks them to assess it. The question of whether the act crosses the threshold is a matter for the Crown Prosecution Service.

PART 6 — THE US NEXUS: SEC AND IRS:CI

26. The Oxus perjury has two active US federal dimensions that distinguish it from a purely domestic matter.

6.1 SEC Whistleblower Submission

27. On 9 October 2024, NZ filed SEC whistleblower submission TCR 17284-760-060-567 under the Dodd-Frank Act whistleblower programme. The submission was filed under penalty of perjury. It names Oxus Acquisition Corp (CIK 1852973) and TAVIA Acquisition Corp (CIK 2020385) as the entities at issue.
28. The submission alleges: (i) Oxus failed to comply with SEC disclosure requirements under Regulation S-K Title 17, Part 229.103 by failing to disclose an ongoing criminal investigation into H; (ii) the due diligence into the origin of the Sponsor funds is

grossly deficient; (iii) Rakishev is currently laundering kleptocracy proceeds and has achieved access to the US capital markets through Oxus and TAVIA.

29. The SEC is required to treat the submission as a live whistleblower complaint. The SEC cannot confirm or deny whether an investigation exists. The submission is on record. MPS and NCA are invited to liaise with the SEC regarding this submission.

6.2 IRS Criminal Investigation

30. IRS Criminal Investigation, New York Field Office, has confirmed an open investigation. The investigating agent is Special Agent Robert McGarry (robert.mcgarry@ci.irs.gov | 917-620-8587). The investigation concerns H's money laundering activities connected to the proceeds of prostitution — the same criminal network documented in the Pinocchio materials that form part of this referral.
31. The Oxus perjury is connected to the IRS:CI investigation because H's role at Oxus was the means by which he obtained a position of apparent legitimacy within the Rakishev network. The suppression of that role's value at trial was part of a broader pattern of concealment. IRS:CI's open investigation provides an independent confirmation that the US authorities regard H's conduct as criminally significant.
32. MPS is invited to liaise directly with Special Agent McGarry. His confirmation of the open investigation removes any doubt that this referral concerns a live criminal matter rather than a civil dispute dressed in criminal language.

PART 7 — THE RAKISHEV NETWORK CONNECTION

33. Kenes Rakishev is not peripheral to this referral. He is the controlling shareholder of Oxus. He appointed H to the Oxus board in June 2022. He and H were photographed together at the Nasdaq Exchange on 8 February 2024 — 11 days before trial.
34. Rakishev has been identified by Parliament as one of 20 Kazakh individuals who possess massive unexplained wealth and are implicated in bribery, corruption, and illicit activities. Dame Margaret Hodge referred to him in Parliament on 3 February 2022 as a person with close ties to Ramzan Kadyrov, who has been sanctioned by OFAC under the Magnitsky Act.
35. Rakishev's company Kazakhstan Paramount Engineering (KPE) manufactures Arlan mine-resistant armoured platform military vehicles. An Arlan MRAP was identified in Mariupol in April 2022 as part of Kadyrov's Chechen forces invading Ukraine. This raises questions of UK and US sanctions evasion.
36. On 19 February 2026, Andrew Mountbatten-Windsor was arrested on suspicion of misconduct in public office in connection with his dealings with Kenes Rakishev and the Kazakh network (including Nursultan Kulibayev). Thames Valley Police are conducting a live investigation. An April 2011 email confirms Andrew brokered a £385

million deal with the Kazakh regime via Rakishev while serving as UK Special Representative for Trade and Investment.

- 37.** NZ's referral cross-references the same network. MPS, NCA, and Thames Valley Police cannot treat these as unconnected matters. The Rakishev/Oxus strand in NZ's referral should be considered in the context of the live Thames Valley Police investigation and the NCA's existing work on kleptocracy proceeds.

PART 8 — REQUESTS TO INVESTIGATING AUTHORITIES

To MPS Serious and Organised Crime Command

- Open a criminal investigation into H's testimony of 22 February 2024 as perjury under Perjury Act 1911 s.1, assessed against the SEC Proxy Statement of 16 January 2024 and the evidence set out in Parts 2 and 3 of this annex.
- Assess whether Campbell KC's email of 6 March 2024 asking the court not to read NZ's submission constitutes perverting the course of justice.
- Liaise with IRS:CI Special Agent Robert McGarry (robert.mcgarry@ci.irs.gov | 917-620-8587) regarding the connected open investigation.
- Liaise with the SEC regarding whistleblower submission TCR 17284-760-060-567.
- Coordinate with Thames Valley Police regarding the live Andrew Mountbatten-Windsor investigation and the shared Rakishev/Kulibayev network.
- Consider referral to NCA Economic Crime Command for the Rakishev/Oxus/sanctions evasion strand.

To CPS Special Crime Division

- Assess the evidence in this annex against the Full Code Test under the Perjury Act 1911 s.1.
- The realistic prospect of conviction is strong: a public SEC filing signed by H 34 days before trial states approximately \$565,000; H testified \$0 under oath; he attended the Nasdaq launch 11 days before trial.
- Assess whether the failure of every domestic court to engage with the substance of the perjury — including the wrongly reasoned dismissal by MacDonald J on 8 May 2025 — constitutes a pattern requiring CPS independent review.

To NCA Economic Crime Command

- Assess the Rakishev/H/Oxus connection for sanctions evasion under UK sanctions law and money laundering under POCA 2002.
- Liaise with DOJ KleptoCapture Task Force, identified by NZ as the appropriate US referral body for the kleptocracy strand.
- Coordinate with Thames Valley Police and MPS on the Rakishev network.

PART 9 — VERIFICATION AND CONTACT

- 38. All SEC filings referenced in this annex are publicly available at SEC EDGAR (www.sec.gov/cgi-bin/browse-edgar) under CIK 1852973 (Oxus Acquisition Corp).
- 39. The Nasdaq photograph (8 February 2024) is preserved in NZ's contemporaneous records and was exhibited to the SEC whistleblower submission TCR 17284-760-060-567.
- 40. Trial transcripts are in NZ's possession and can be provided to investigating officers on request.
- 41. NZ is the claimant/applicant wife in BV20D01752. She is a litigant in person. She has autism spectrum condition and PTSD (NHS diagnosis, CLAAS, June/July 2025). She requests that communications be sent by email and in plain language.

EVIDENCE AVAILABILITY

The SEC Proxy Statement (CIK 1852973, 16 January 2024), the SEC Form 3 (7 June 2022), the Nasdaq photograph (8 February 2024), the SEC whistleblower submission (TCR 17284-760-060-567), the AFP Bloom emails (29 February, 4 and 6 March 2024), the D11 application (7 March 2024), Campbell KC's email of 6 March 2024, the AG referral (21 May 2025), the trial transcripts, and all related correspondence are archived on the public archive: **github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive**.

All primary source documents referenced in this annex are available for forensic inspection.